



CHAPTER 20.

An Act to extend the powers which may be exercised by His Majesty under the Emergency Powers (Defence) Act, 1939. [22nd May 1940.]

WHEREAS by the Emergency Powers (Defence) Act, 1939, His Majesty was enabled to exercise certain powers for the purpose of meeting the emergency existing at the date of the passing of that Act :

And whereas by reason of the development of hostilities since that date it has become necessary to extend the said powers in order to secure that the whole resources of the community may be rendered immediately available when required for purposes connected with the defence of the Realm :

Now therefore be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The powers conferred on His Majesty by the Emergency Powers (Defence) Act, 1939, (hereinafter referred to as the "principal Act") shall, notwithstanding anything in that Act, include power by Order in Council to make such Defence Regulations making provision for requiring persons to place themselves, their services, and their property at the disposal of His Majesty, as appear to him to be necessary or expedient for securing the public safety, the defence of the Realm, the maintenance of

Extension
of powers
under 2 & 3
Geo. 6. c. 62.

public order, or the efficient prosecution of any war in which His Majesty may be engaged, or for maintaining supplies or services essential to the life of the community.

(2) In paragraph (d) of subsection (2) of section one of the principal Act and in subsection (4) of that section the expression "enactment" shall mean any enactment passed before the commencement of this Act.

(3) Subsection (1) of section eleven of the principal Act (which relates to the duration of that Act) shall have effect as if for the words "one year," where those words first occur, there were substituted the words "two years."

Short title
and citation.

2. This Act may be cited as the Emergency Powers (Defence) Act, 1940, and this Act and the Emergency Powers (Defence) Act, 1939, may be cited together as the Emergency Powers (Defence) Acts, 1939 and 1940.

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